Some aspects of the working of the system of checks and balances in the American Constitutional system are:

(i) The President can veto the bills passed by the Congress. He/she enjoys two kinds of vetos—Pocket veto and Qualified veto.

(ii) The Senate confirms the higher appointments made and international treaties concluded by the President.

(iii) The Congress determines the organisation and appellate jurisdiction of the judiciary.

(iv) The President appoints the judges with the consent of the Senate.

(v) The Supreme Court can declare the congressional laws and Presidential orders as *ultra vires.*

7. Supremacy of Constitution and Judicial Review The American Constitution embodies the principle of 'hierarchy of laws'. The written Constitution is regarded as the highest (supreme or fundamental) law of the land. The statutes of the Congress and state legislatures must conform to this supreme law. If these statutes are against the provisions of the Constitution, they can be declared by the Supreme Court as *ultra vires* and hence, null and void. The Supreme Court thus acts as the custodian of the Constitution through its power of judicial review.

8. Bill of Rights The American Constitution is the first Constitution in the world to carry the Bill of Rights. It guarantees a large number of rights to the people. It says that no person is to be deprived of life, liberty and property without due process of law. These rights impose restrictions on the authority of the Government. The Supreme Court acts as the protector of these rights through its power of judicial review. This Bill of Rights was added to the original Constitution in 1791 through the first ten amendments.

9. Bicameralism The American Federal Legislature called the Congress is bicameral, that is, it consists of two Houses, namely the Senate and the House of Representatives. The Senate is the upper House while the House of Representatives is the lower House. The Senate consists of 100 members, two being elected from each state to serve for a fixed six-year term. The House of Representatives consists of 435 members elected from single member constituencies to serve for a fixed two-year term. The Senate is the more powerful chamber of the Congress. In fact, the American Senate is the most powerful second chamber (upper House) in the world.

American President

Mode of Election The American Constitution provides for an indirect election of the President. However, the growth of political parties and political conventions has converted it into a direct election.

Constitutionally, the President is elected by an electoral college constituted for the purpose. The members of this college (called as Presidential Electors) are elected directly by the people of all the states. The number of Presidential electors in each state is equal to the number of its members in the Congress (both in the House of Representatives and in the Senate). It means that the electoral college consists of as many members as is the total strength of the two Houses of the Congress. Additionally, three votes have been given to the District of Columbia, a federal enclave and not a state. Thus, the total strength of the electoral college is 538 (435 is the strength of the House of Representatives, 100 is the